EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

DECISION

Application no. 51107/12
Valeriu BUZU
against the Republic of Moldova

The European Court of Human Rights (Second Section), sitting on 19 June 2018 as a Committee composed of:

Paul Lemmens, *President,*
Valeriu Griţco,
Stéphanie Mourou-Vikström, *judges,*
and Hasan Bakırcı, *Deputy Section Registrar,*

Having regard to the above application lodged on 7 August 2012,

Having regard to the declaration submitted by the respondent Government on 23 April 2018 requesting the Court to strike the application out of the list of cases and the applicant's reply to that declaration,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The applicant, Mr Valeriu Buzu, is a Moldovan national, who lives in Chișinău. He was represented before the Court by Mr A Bot, a lawyer practising in Chișinău.

The Moldovan Government ("the Government") were represented by their Agent, Mr O. Rotari.

The application concerns the applicant's detention for one night as a result of his peaceful protest. The applicant was charged with insulting the police but was subsequently acquitted by the courts which found the charges unfounded. After acquittal the applicant initiated civil proceedings against the State before the domestic courts claiming compensation in the amount of some 914 euros (EUR) for the breach of his rights guaranteed by Articles 5 and 11 of the Convention. The Supreme Court of Justice found that the applicant's rights had been breached and awarded him the

equivalent of some EUR 444. The applicant complained that the amount was not sufficient for him to lose his victim status under Articles 5 and 11 of the Convention.

The application had been communicated to the Government.

THE LAW

The applicant complained about his unlawful detention in custody for one night. He also complained about a breach of his right to freedom of assembly. He relied on Articles 5 § 1 and 11 of the Convention.

After the failure of attempts to reach a friendly settlement, by a letter of 23 April 2018 the Government informed the Court that they proposed to make a unilateral declaration with a view to resolving the issue raised by the application. They further requested the Court to strike out the application in accordance with Article 37 of the Convention.

The declaration provided as follows:

> "The Government of the Republic of Moldova acknowledge [...] that there has been a violation of the applicant's rights under Article 5 §§ 1 and 5 and Article 11 of the Convention since the compensation for non-pecuniary damage awarded by the national courts has not enabled the applicant to lose his victim status. [...] the Government propose to pay [...], EUR 470 (four hundred and seventy euros) to cover any and all pecuniary and non-pecuniary damage, as well as costs and expenses, plus any tax that may be chargeable to the applicant.
>
> [...] the above amount will be converted into Moldovan Lei at the rate applicable on the date of payment and free of any taxes that may be applicable. It will be payable within three months from the date of notification of the decision taken by the Court pursuant to Article 37 § 1 of the Convention. In the event of failure to pay this sum within the said three-month period, the Government undertake to pay simple interest on it, from expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points. The payment will constitute the final resolution of the case and of any other claims that may appear from the circumstances of the present case [...].
>
> In conclusion, the Government invite the Court to strike the application out of its list, according to the provisions of Article 37§ 1 (c) of the Convention."

By a letter of 28 May 2018, the applicant indicated that he was not satisfied with the terms of the unilateral declaration on the ground that the amount proposed by the Government was too small. Without pointing to any relevant case-law of the Court, the applicant indicated that he wanted EUR 12,000 for non-pecuniary damage.

The Court reiterates that Article 37 of the Convention provides that it may at any stage of the proceedings decide to strike an application out of its list of cases where the circumstances lead to one of the conclusions specified, under (a), (b) or (c) of paragraph 1 of that Article.

Article 37 § 1 (c) of the Convention enables the Court in particular to strike a case out of its list if:

> "for any other reason established by the Court, it is no longer justified to continue the examination of the application".

It also reiterates that in certain circumstances, it may strike out an application under Article 37 § 1 (c) of the Convention on the basis of a unilateral declaration by a respondent Government even if the applicant wishes the examination of the case to be continued.

To this end, the Court has examined the declaration in the light of the principles emerging from its case-law, in particular the *Tahsin Acar* judgment (*Tahsin Acar v. Turkey* (preliminary objections) [GC], no. 26307/95, §§ 75-77, ECHR 2003-VI; see also *WAZA Sp. z o.o. v. Poland* (dec.), no. 11602/02, 26 June 2007; and *Sulwińska v. Poland* (dec.), no. 28953/03, 18 September 2007).

Having regard to the nature of the admissions contained in the Government's unilateral declaration of 23 April 2018 and to the amount of compensation proposed by the Government which together with the amount already granted by the domestic courts would amount to the sum requested by the applicant before the domestic courts (see above), the Court considers that it is no longer justified to continue the examination of the application (Article 37 § 1 (c) of the Convention) (see, for the relevant principles, *Tahsin Acar*, cited above, and *Meriakri v. Moldova* ((striking out), no. 53487/99, 1 March 2005)).

In the light of all the above considerations, the Court is satisfied that respect for human rights as defined in the Convention and the Protocols thereto does not require it to continue the examination of the application (Article 37 § 1 *in fine*).

Accordingly it should be struck out of the list.

For these reasons, the Court, unanimously

Takes note of the terms of the respondent Government's declaration and of the modalities for ensuring compliance with the undertakings referred to therein;

Decides to strike the application out of its list of cases in accordance with Article 37 § 1 (c) of the Convention.

Done in English and notified in writing on 12 July 2018.

Hasan Bakırcı	Paul Lemmens
Deputy Registrar	President